2026-027478 LISPEN
10/29/2026 10:21:34 AM Pages: 4 Fee: $306.50
Carl D Boshers Jr
Benton County, Benton County Auditor's Office

Unofficial Copy

After recording return to:
Carl D. Boshers Jr.
1332 Haupt Avenue
Richland, WA 99354

# NOTICE OF LIS PENDENS

(RCW 4.28.320)

| | |
|---|---|
| **Reference numbers of related documents:** | AFN 2019-021799; AFN 2019-021883; AFN 2023-010790; AFN 2023-013016; AFN 2023-017562; AFN 2026-007558; AFN 2026-011024 |
| **Grantors (claimants):** | Boshers, Carl D., Jr.; Boshers, Kimberly |
| **Grantees:** | Evergreen Moneysource Mortgage Company d/b/a Evergreen Home Loans; Secretary of Veterans Affairs |
| **Abbreviated legal description:** | Lot 2, Block 805, Plat of Richland, Vol. 6 and 7 of Plats, Benton County, Washington |
| **Assessor's Parcel No.:** | 1-0298-402-0805-002 |

NOTICE IS HEREBY GIVEN that an action affecting title to the real property described below is pending in the Superior Court of Washington for Benton County, under Cause No. 25-2-01401-03, entitled *Evergreen Moneysource Mortgage Company d/b/a Evergreen Home Loans v. Carl D. Boshers Jr. and Kimberly Boshers*, and that the judgment entered in that action on June 26, 2026 is the subject of an appeal now pending in the Court of Appeals of the State of Washington, Division III, under No. 42373-5-III.

**1. Names of the parties.** Plaintiff and Respondent: Evergreen Moneysource Mortgage Company d/b/a Evergreen Home Loans. Defendants and Appellants: Carl D. Boshers

Jr. and Kimberly Boshers.

**2. Object of the action.** The action concerns the validity and effect, as to the real property described below, of the following instruments recorded with the Benton County Auditor: a Deed of Trust recorded July 31, 2019 under Auditor's File No. 2019-021799 and recorded again August 1, 2019 under Auditor's File No. 2019-021883; a Deed of Reconveyance recorded June 1, 2023 under Auditor's File No. 2023-010790; an Assignment of Deed of Trust recorded June 28, 2023 under Auditor's File No. 2023-013016; a Trustee's Deed Upon Sale recorded March 31, 2026 under Auditor's File No. 2026-007558; and a General Warranty Deed to the Secretary of Veterans Affairs recorded May 7, 2026 under Auditor's File No. 2026-011024. The Defendants and Appellants contend that the obligation secured by the Deed of Trust was released of record by the Deed of Reconveyance, that the instrument recorded as Auditor's File No. 2019-021883 is a duplicate recording of the same Deed of Trust, that no trustee's sale of the property took place on March 20, 2026, and that the Trustee's Deed Upon Sale and the instruments depending on it are void or voidable and should be set aside and title quieted in the record owner. The Plaintiff contends otherwise. These questions are before the Court of Appeals in No. 42373-5-III.

**3. Description of the real property affected.** The real property situated in Benton County, Washington, commonly known as 1332-1334 Haupt Avenue, Richland, Washington 99354, Assessor's Parcel No. 1-0298-402-0805-002, and legally described as follows:

LOT 2, BLOCK 805, PLAT OF RICHLAND, ACCORDING TO THE PLAT THEREOF RECORDED IN VOLUME 6 AND 7 OF PLATS, RECORDS OF BENTON COUNTY, WASHINGTON. SITUATE IN THE COUNTY OF BENTON,

Unofficial Copy

STATE OF WASHINGTON.

**4. Record title holder.** Record title to the property stood in The 1332-1334 Haupt Avenue Trust by Quit Claim Deed recorded August 22, 2023 under Auditor's File No. 2023-017562, before the Trustee's Deed Upon Sale described above was recorded.

Every person whose conveyance or encumbrance of the above property is executed or recorded after the filing of this notice is a subsequent purchaser or encumbrancer and is bound by the proceedings in the action to the same extent as if a party to it. RCW 4.28.320.

DATED this 28th day of October, 2026.

Carl D. Boshers Jr., Defendant and Appellant, pro se
1332 Haupt Avenue, Richland, WA 99354
rocky41121@gmail.com

Kimberly Boshers, Defendant and Appellant, pro se
1332 Haupt Avenue, Richland, WA 99354

STATE OF WASHINGTON )
COUNTY OF BENTON ) ss.

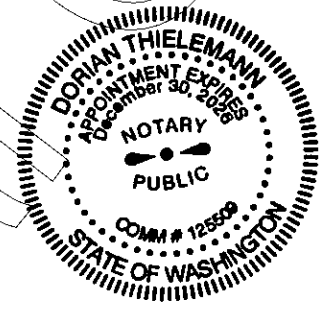
I certify that I know or have satisfactory evidence that Carl D. Boshers Jr. and Kimberly Boshers are the persons who appeared before me, and said persons acknowledged that they signed this instrument and acknowledged it to be their free and

Unofficial Copy

voluntary act for the uses and purposes mentioned in the instrument.

Dated: October 28, 2026.

Notary Public in and for the State of Washington
Residing at: Benton County
My commission expires: 12/31/24




Unofficial Copy